

		Here, Cross-Complainant seeks a declaration of its rights as to its liability to Plaintiff. The demurrer to this cause of action is OVERRULED. E. SIXTH CAUSE OF ACTION FOR NEGLIGENCE The Demurrer is SUSTAINED WITH LEAVE TO AMEND in 10 days as to the sixth cause of action for negligence. The Court finds that, as written, the Cross-Complaint does not sufficiently allege what duty Cross-Defendant owed to Cross-Complainant. (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662 [“To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages or injuries.”].) In sum, the Demurrer to the Cross-Complaint is OVERRULED as to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief, and SUSTAINED WITH LEAVE TO AMEND as to the sixth cause of action for negligence. Cross-Complainant to give notice.
105	OSP Health Management Inc. vs. Pole USA Investment One, LLC 26-01546948	1. Demurrer to Answer 2. Motion to Strike Portions of Answer 3. Case Management Conference (1-3) Continued to 10/20/2026 at 10:00 AM Moving party to give notice.
106	Forouzandeh vs. Wilmington Savings Fund Society, FSB	Motion for Order Authorizing Alternative Service

	25-01479354	Cross-Complainant U.S. Bank Trust National Association’s (“U.S. Bank”) Motion Authorizing Alternate Service is denied without prejudice. U.S. Bank moves, under CCP section 413.30, for an order authorizing alternate service on Cross-Defendant Michael Thompson, both (i) individually and (ii) as Trustee of the Thompson Paseo Elegancia Trust Dated September 13, 2022. When serving an individual, the Code provides five different methods of service: (1) personal service (§ 415.10); (2) substitute service (§ 415.20); (3) acknowledgement of receipt of summons by regular mail with return acknowledgment of receipt (§ 415.30); (4) registered or certified airmail with return receipt (but only on a person outside this state) (§ 415.40); and, (5) service by publication (§ 415.50). Generally, “in order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures.” (Zirbes v. Stratton (1986) 187 Cal.App.3d 1407, 1417.) Even “[a]ctual notice” is not sufficient to obtain personal jurisdiction over the defendant where the method of service is “totally outside the statutory prescriptions.” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 415 [rejecting argument that, if “somehow [service] resulted in actual notice to the defendant in time to defend the action, then any defects in the manner of service should be overlooked”]; see also American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 392 [“Actual notice of the action alone, however, is not a substitute for proper service and is not sufficient to confer jurisdiction”].) Here, U.S. Bank has not shown that relief under CCP section 413.30 is available. The statute provides, in relevant part, that: If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite
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		exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (Code Civ. Proc., § 413.30, subd. (a)(1), emphasis added.) To establish “reasonable diligence,” the moving party must “set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) Here, U.S. Bank has arguably demonstrated that it has been reasonably diligent in attempting personal service on Cross-Defendant Thomson, and that it has been unable to do so. However, U.S. Bank’s motion fails to address any attempt at service by acknowledgement of receipt of summons with return acknowledgment of receipt (§ 415.30), or any of the other methods of service. As part of U.S. Bank’s proposed “alternative service package,” it suggests service by publication. However, the motion fails to include the requisite affidavit addressing the circumstances required for an order of service by publication. (Code Civ. Proc., § 415.50, subd. (a); <i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 884 [“An application for an order of publication must be accompanied by an affidavit stating facts from which the trial court can draw the conclusion that the plaintiff has a cause of action against the defendant”].)
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107	Liu vs. Tran 25-01487015	Motion for Undertaking Defendant, Brittany R. Eichin, moves for an order requiring Plaintiff, Shu Xia Liu, to file an undertaking pursuant to Code of Civil Procedure section 1030, to secure Defendant's anticipated costs in the estimated total amount of \$35,525, or alternatively, any other sum deemed reasonable by the court. The Motion for Undertaking is DENIED. Defendant's Request for Judicial Notice. The Court DENIES Defendant's request for judicial notice as to an Orange County Sheriff's Department Police Report, dated June 26, 2025. Defendant requests that the Court take judicial notice of an Orange County Sheriff's Department Police Report, dated June 26, 2025 (Ex. 1) pursuant to Evidence Code section 452(d) and (h). The recommendation is to DENY the request for judicial notice. A police report is not a court record (Evidence Code section 452(d)), and the contents of the police report do not contain facts that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy (Evidence Code section 452(h)). A police report is not the proper subject of judicial notice. (See <i>In re Marriage of Brewster & Clevenger</i> (2020) 45 Cal.App.5th 481, 498 [finding a police report "is not subject to either mandatory or discretionary judicial notice under Evidence Code sections 451 or 452; it is not party of a court record under section 452, subdivision (d), nor is it a record of the '[o]fficial acts of the legislative, executive, [or] judicial departments' of the state under section 452, subdivision (c)"]; <i>People v. Jones</i> (1997) 15 Cal.4th 119, 171, fn.17 overruled on other grounds in <i>People v. Hill</i> (1998) 17 Cal.4th 800 [declining "to